

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, April 24, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25188 against Police Officer Jeanette Rodriguez, Tax Registry No. 961193. The case was conferenced on April 15, 2025, before Assistant Deputy Commissioner of Trials Paul M. Gamble, Sr., who approved a Dismissal of the Charges and Specifications with a penalty of Training to be imposed by the Department.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

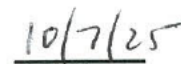
**DISPOSITION OF CHARGES**

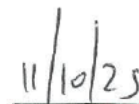
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031950BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE POF	SURNAME, RODRIGUEZ	FIRST JEANETTE	M.I.	COMMAND 075
SHIELD NO. 3555	TAX REGISTRY NO. 961193	SOCIAL SECURITY NO.	DATE APPOINTED 01/06/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Jeanette RODRIGUEZ, on or about October 17, 2020, at approximately 2005, while assigned to 075 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused her authority as a member of the New York City Police Department, in that she stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Police Officer Jeanette RODRIGUEZ, on or about October 17, 2020, at approximately 2005, while assigned to 075 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused her authority as a member of the New York City Police Department, in that she interfered with § 87(2)(b) use of a recording device without sufficient legal authority.	DISMISSED	
3. Police Officer Jeanette RODRIGUEZ, on or about October 17, 2020, at approximately 2005, while assigned to 075 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused her authority as a member of the New York City Police Department, in that she refused to provide her shield number to § 87(2)(b) without sufficient legal authority.	DISMISSED	
 FIRST DEPUTY COMMISSIONER		 DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

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RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
4. Police Officer Jeanette RODRIGUEZ, on or about October 17, 2020, at approximately 2005, while assigned to 075 PCT and on duty, in the vicinity of [REDACTED] Kings County, abused her authority as a member of the New York City Police Department, in that she failed to provide [REDACTED] with a business card without sufficient legal authority.	DISMISSED	



FIRST DEPUTY COMMISSIONER

10/7/25

DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

10/11/25

DATE



POLICE DEPARTMENT

October 22, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202007357 (Incident Date: October 17, 2021) involving Police Officer Jeannette Rodriguez, Tax No. 961193 (DADS Case No. 2022-25188 / PODS Case No. C-032266)

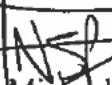
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Jeannette Rodriguez and determined that no disciplinary action is warranted regarding the allegation that she interfered with an individual's use of a recording device.

In this matter, Officer Rodriguez conducted a stop of an individual and failed to provide the individual with her shield number and business card. CCRB alleged that she also interfered with the individual's right to record by shining her flashlight at his cellphone. After reviewing the evidence, the Police Commissioner agrees with CCRB's findings except with respect to the allegation that Officer Rodriguez interfered with the individual's recording. Body-worn camera footage shows that Officer Rodriguez used her flashlight to illuminate the individual while her partner was frisking him, which took place at night on a dark sidewalk. As soon as the frisk was finished, Officer Rodriguez put her flashlight away. Given the totality of the circumstances, the Police Commissioner finds that Officer Rodriguez did not intentionally interfere with the individual's right to record.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the allegation that she interfered with the individual's use of a recording device. However, the Police Commissioner agrees with the negotiation between CCRB and Officer Rodriguez in that she will receive formalized training for the stop, and for failing to provide her shield number and business card.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.

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ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

November 6, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Jeanette Rodriguez
PODS Case No.: C-032266

Dear Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Michael P. Baker, dated October 22, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you determined that “no disciplinary action is warranted” regarding the Specification involving the interference with a recording device. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Assistant Chief Baker’s notification. Assistant Chief Baker stated that after reviewing the recommendation of the CCRB, you determined that the actions of PO Rodriguez do not warrant disciplinary action as to the specification involving the interference with a recording device. The CCRB disagrees with your recommendation.

In his letter, Assistant Chief Baker stated that PO Rodriguez did not interfere with § 87(2)(b) ability to record and that she was instead using her flashlight to “illuminate the individual” while her partner conducted a frisk. However, BWC footage from Det. Argila clearly shows that PO Rodriguez briefly flashed her flashlight at § 87(2)(b) and then turned off her flashlight. It was not until § 87(2)(b) began to record using his cell phone that PO Rodriguez turned her flashlight back on and shined it at § 87(2)(b) cell phone. The footage also shows that the beam of light from the flashlight remained focused on the phone and that PO Rodriguez did not move her flashlight anywhere else. The evidence shows that PO Rodriguez was not using her flashlight to illuminate § 87(2)(b) for her partner but rather pointing it directly at § 87(2)(b) camera interfering with § 87(2)(b) ability to record.

Please note that the negotiated penalty was already a downward deviation from the recommended mitigated penalty of a forfeiture of ten (10) vacation days as outlined in the

Disciplinary Matrix. In making this recommendation, the CCRB already took into account the totality of the circumstances during this incident as well as PO Rodriguez' history with the Department.

Based upon the foregoing, CCRB requests that Specification regarding the interference with a recording device not be dismissed and that the negotiated penalty of Training be imposed as to all Specifications.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board

CC: Michael Martinez, Esq.